

24STCV07454 24STCV07454

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Case Number: 24STCV07454 Hearing Date: August 10, 2026 Dept: 408

Plaintiff Pedro Diego's Motion for Leave to Amend Complaint is GRANTED.

I. BACKGROUND

On March 14, 2025, Plaintiff Pedro Diego ("Plaintiff") filed a complaint against Defendant Universal Building Maintenance, LLC ("Defendant") alleging causes of action for:

1. Disability Discrimination;
2. Failure to Accommodate;
3. Failure to Engage in The Interactive Process;
4. Retaliation in Violation of FEHA; and
5. Wrongful Termination in Violation of Public Policy.

On May 1, 2025, Defendant filed an answer to Plaintiff's complaint.

On June 4, 2026, Plaintiff filed this Motion for Leave to Amend Complaint. On July 28, 2026, Defendant filed an opposition. As of August 4, 2026, no reply has been filed.

II. LEGAL STANDARD

Under Code of Civil Procedure section 473(a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1).) Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend[.]" (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay

in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, Rule 3.1324, subd. (a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, Rule 3.1324, subd. (a).) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

III. DISCUSSION

Plaintiff seeks leave to amend the complaint to include additional causes of action for violation of the California Family Rights Act (“CFRA”), wrongful termination in violation of bereavement leave, and disability-based associational discrimination. (Motion, at p. 3.) Plaintiff contends that Defendant stipulated to Plaintiff’s proposed CFRA and bereavement leave claims, but declined to stipulate as to the disability-based associational discrimination claim arguing that it is improper. (Id., at p. 7.) Plaintiff further argues that leave to amend is to be liberally granted and there will be no prejudice to Defendant from allowing amendment. (Id., at p. 8.)

In opposition, Defendant argues that amendment would be futile as Plaintiff seeks to amend the complaint to include allegations which do not provide liability or a cognizable claim pursuant to California law for disability-based associational discrimination. (Opp., at pp. 3, 4-7.) Defendant also argues that the proposed amendment is unduly delayed as Plaintiff was aware of the facts alleged in support of the proposed additional claims. (Id., at pp. 1-3.)

The court finds that Plaintiff complies with the requirements of Rule 3.1324 by providing a copy of the proposed first amended complaint, identifying the changes to be made, and a supporting declaration stating why the amendment is necessary. (Ranen Decl., ¶¶ 2-12, Exh. A.) The court also finds that any prejudice to Defendant would be minimal as there is ample time to contest the amended pleading and raise any dispositive arguments as to the new causes of action asserted through an appropriate motion.

Accordingly, the motion is granted.

IV. CONCLUSION

Plaintiff Pedro Diego’s Motion for Leave to Amend Complaint is GRANTED.

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